

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION
41 U.S.C. 3304(a)(7))**

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), on behalf of the Office of DHS Public Affairs office intends to limit competition to three contractors based on other than full and open competition.

2. Nature and/or description of the action being approved.

- (a) Type of action: Creation and dissemination of a domestic and international campaign aimed at directing illegal aliens, within the United States (U.S.) and its territories, to leave immediately and discouraging illegal immigration into the United States. This includes full scale requirements for extensive media buying, media production, advertising campaign development, and optimization and reporting services.
- (b) Name and address of the contractor: TBD
- (c) Contract type: This will result in a multiple award Indefinite Delivery Indefinite Quantity (IDIQ) contract. The orders under the IDIQs will utilize a mix of Firm Fixed Price, Labor Hour, and Time and Materials contract line-item numbers.
- (d) Estimated total value: The cumulative value of the IDIQs is \$200,000,000.
- (e) Type of funding: Operations and Support Funds
- (f) Year of funding: The type of funding used for each task order will be determined at the order level.
- (g) Solicitation number: 70RDA225R00000015
- (h) Background: On January 20, 2025, President Trump declared a national emergency at the Southern border to stop the illegal entry of aliens into the U.S. To facilitate this effort, the DHS is launching a domestic and international campaign directed at illegal aliens in the United States and others considering illegal entry.

3. Description of Supplies/Services.

The purpose of this requirement is to obtain all aspects of media buying, media production, and advertising campaign development services as required. Specifically, these include:

- Media buying services to include the strategizing, planning, negotiation, scheduling, campaign budget/resource management, campaign effectiveness monitoring and reporting, and optimization.
- Media production services to include creation of content for various media platforms and in relevant languages. This may include, but is not limited to video production, audio production, graphic design, photography, translation or use of non-English language(s), and web development.
- Advertising campaign development services to include strategizing, planning, creative services, and executing a series of coordinated marketing efforts to achieve specific business goals.

4. Identification of statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is "Unusual and Compelling Urgency", 41 U.S.C. § 3304(a)(2), ("the executive agency's need for the property or services is of such an unusual and compelling urgency that the Federal Government would be seriously injured unless the executive agency is permitted to limit the number of sources from which it solicits bids or proposals (*see also* 48 C.F.R. § 6.302-2)). The immediate action supported by this authority is in response to a national emergency declaration.

5. Demonstration that the nature of the acquisition require use of the authority cited.

On January 20, 2025, the President of the United States declared a national emergency at the Southern border of the U.S. to stop the illegal entry of aliens. To aid in responding to this emergency, DHS requires an immediate domestic and international campaign to direct illegal aliens within the U.S. and its territories to leave immediately, and to discourage illegal immigration into the country. The communication campaign will disseminate accurate and timely information that will in turn stem the flow of illegal border crossings and facilitate the removal of illegal aliens presently within the United States. Any delay in providing these critical communications to the public will increase the spread of misinformation, especially misinformation by smugglers and others insistent on controverting the laws of the U.S. Additionally, a delay in effectively communicating accurate and timely information will allow illegal border crossings to continue to rise, increasing the potential for a humanitarian crisis at the border and within the country. To reduce any delays to the rapid release of these critical communications, a limiting competition is needed. A limited competition preserves the intent of the Competition in Contracting Act while permitting the Government to quickly solicit and award a contract by using a reduced pool of vendors that are positioned, based on available resources and

capabilities, to respond to this immediate need.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

An announcement for this action will not be published at SAM.gov. It is exempt from the requirement per the exception at FAR 5.202(a)(2).

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The contracting officer determines that the anticipated prices will be fair and reasonable based on price analysis and a comparison. Additionally, the proposed prices will be compared to the government estimate to determine prices fair and reasonable.

8. Description of market research.

In February 2025, DHS reviewed industry publications, analyzed recent DHS initiatives, and evaluated vendors specializing in hyper-targeted media and advertising services. Targeted sources included government websites, industry articles, vendor platforms, and subject matter expertise. Given the immediate action to significantly reduce illegal immigration and border crossings, DHS identified four companies that specialize in domestic and international advertising campaign development, media buying, and media production. These companies are positioned, based on available resources and capabilities, to respond to this immediate need. The companies possess extensive expertise, have established relationships domestically and internationally for media buying and campaign placement, and are able to immediately support this requirement.

9. Any other facts supporting the use of other than full and open competition.

None.

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

Competition will be limited to the following vendors:

- Safe America Media
- [REDACTED]
- People Who Think

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

This multiple award vehicle will meet this immediate urgent need in response to the emergency declaration.

12. Program Office Certification. I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted Signature]

Program Office Representative

Date

13. Contracting Officer's Certification. I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer

Date

APPROVAL:

[Redacted Signature]

Head of the Contracting Activity

Date

[Redacted Signature]

Chief Procurement Officer

Date